HH 209-26
HCH 1540/25

MINISTER OF HIGHER AND TERTIARY EDUCATION, INNOVATION, SCIENCE & TECHNOLOGY DEVELOPMENT N.O
versus
ZIMBABWE PLATINUM MINES (PVT) LTD

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 3 and 4 March 2026

Opposed application

M. Mavhiringidze, for the plaintiff
T.Mpofu, for the defendant

MAMBARA J:

Introduction

[1] This is a stated case placed before me for determination in terms of Rule 52 of the High Court Rules, 2021. The rule in subparagraph (1) specifically provides that,

> "The parties to any civil action or suit may, after summons has been issued, agree upon a written statement of facts or the questions of law arising therein in the form of a special case for the adjudication or opinion of the court."

[2] The plaintiff is the Minister of Higher and Tertiary Education, Innovation, Science and Technology Development, acting in the official capacity contemplated by the Manpower Planning and Development Act [*Chapte*r 28:02] as read with the statutory instruments governing the training levy.

[3] The defendant is Zimbabwe Platinum Mines (Pvt) Ltd ("the defendant"), a prescribed employer registered for training levy purposes.

[4] The dispute raises questions of statutory interpretation in a familiar Zimbabwean setting: where a statutory obligation is calculated by reference to foreign-currency remuneration, does the obligation have to be paid in that foreign currency, or may it be discharged using the domestic currency, being part of the legally permitted "basket" of currencies?

[5] The immediate controversy was prompted by the introduction of the Zimbabwe Gold currency ("ZiG") under Statutory Instrument 60 of 2024, and the defendant's tender of local currency payment which the plaintiff rejected as non-compliant with Statutory Instrument

187 of 2022 governing payment of training levies by employers whose wage bill is in foreign currency.

Agreed facts and issues

[6] The parties agreed that there are no factual disputes concerning the defendant's status as a prescribed employer and its underlying obligation to pay the training levy at the applicable statutory rate tied to its wage bill.

[7] It is common cause that the defendant remunerates its employees in United States dollars, and that—on the plaintiff's computation derived from the defendant's payroll summaries—the amount due as at 28 February 2025 was USD 1,169,767.01.

[8] It is also common cause that in July 2024 the defendant tendered payment in local currency

> "in full and final settlement", which the plaintiff rejected and returned on 10 July 2024 on the basis that the tender did not comply with Statutory Instrument 187 of 2022. In particular, the plaintiff in its rejection of the payment relied on s3 of SI 187 of 2022 whose disposition reads: " Section 3 of the principal notice is amended by the insertion of the following after subsection (1)— "(2) Every employer with a wage bill in foreign currency other than that of Zimbabwe shall be required to pay his or her levy in foreign currency. (3) Where the wage bill is a combination of United States dollars and Zimbabwe dollars, the employer concerned shall pay his or her levy in both Zimbabwe dollars and such foreign currency on a pro rata basis.".

[9] The stated issues for determination are: (i) whether the defendant is liable to pay USD 1,169,767.01 (and any surcharge) in foreign currency in terms of Statutory Instrument 187 of 2022; and (ii) if the amount is due, whether the defendant is entitled to settle in local currency in terms of Statutory Instrument 60 of 2024.

[10] As this is a stated case, the court is bound by the parties' agreed facts and must determine only the legal questions arising from them. Once facts are agreed the court must not delve into the correctness or otherwise of the facts, and must proceed to determine the legal question, keeping the parties strictly to their stated case unless properly withdrawn on recognised grounds.

[11] At the hearing of this matter both counsels for the plaintiff and the defendant correctly stated that this is a matter that can be resolved by a correct interpretation of the governing statutes. Counsel for the plaintiff restricted his submissions to the interpretation of the statutes and the governing statutes. Counsel for the defendant made tantalising submissions tracing the legislative route the change in the currencies in Zimbabwe took. This subject has exercised the mind and soul of the court and one hoped that the Zambezi Gas Zimbabwe

(Pvt) Ltd v N.R. Barber SC3/20 and subsequent cases thereafter had resolved this problem but this is not the case. There are many offshoots of these currency changes that are still sources of disputes between parties.

[12] Counsel for the defendant submitted that notionally there are two currencies in Zimbabwe: the local currency, the Zimbabwe Gold (ZIG) and the foreign currency and that foreign currency was a commodity and the ZIG was money. In the circumstances, if ever there was an obligation to pay everyone in the Republic must accept payment in the local currency because the local currency is what we call money and it is therefore the legal tender. Because it is money the law imposes an obligation on everyone to accept it. He further submitted that s44D of the Reserve bank Act effectively recognizes the Zig and the United States Dollar as local currencies unlike before 2022 when the Zimbabwe RTGS was not recognised as currency and the United States Dollar was recognized as currency. Because both currencies are our money one has the liberty to choose in which currency one can settle any debt. It does not matter in what currency the debt has arisen.

[13] It was further submitted in support of the defendant's case that the position that the ZIG and the United States are our currencies was further inserted as s44D(6) in the Reserve Bank Act (Chapter23:15) as opposed to the need to pay the levy in foreign currency that has remained contained in a Statutory Instrument. Statutory Instrument 187/22 raises a charge and this charge can be discharged in the local currency. The Statutory Instrument cannot trump a Statute that provides how a domestic debt is to be discharged, it was further argued. In simple terms, it was argued, the obligation imposed upon the defendant by subsidiary legislation can be acquitted in a currency which parent legislation has designated. Being contained in a statute s44 has precedence over SI187/22.

[14] While these arguments make sense, as correctly stated above, the issue before me can only be resolved by a correct interpretation of the governing statutes and I will proceed to do that.

Statutory framework and governing principles

[15] The statutory authority to impose and collect levies for the Zimbabwe Manpower Development Fund is contained in section 53 of the Manpower Planning and Development Act [Chapter 28:02]. Section 53(2) empowers the Minister, on advice of the Council and with approval of the Minister responsible for finance, to "by statutory instrument impose a levy" on specified employers.

[16] Section 53(4) is of central relevance. It permits the statutory instrument imposing the levy to provide for "the manner in which and the time or times within which the levy is to be collected and paid", and for "interest" and/or "a surcharge" upon default.

[17] Section 54(1) obliges every employer liable to the levy— "in accordance with the statutory instrument imposing the levy"—to pay "in the specified manner and at the specified time or times."

[18] Section 54(4) further declares that the levy (and associated interest/surcharge) "shall be a debt to the Fund" recoverable by action "at the suit of the Minister."

[19] The paying instrument in issue for foreign-currency wage bills is Statutory Instrument 187 of 2022. It amended section 3 of the principal levy notice to add a peremptory rule: "Every employer with a wage bill in foreign currency other than that of Zimbabwe shall be required to pay his or her levy in foreign currency." Where the wage bill is mixed (United States dollars and Zimbabwe dollars), payment is "in both… on a pro rata basis."

[20] The currency reform instrument relied on by the defendant is Statutory Instrument 60 of 2024, made under the Presidential Powers (Temporary Measures) Act [Chapter 10:20]. It inserted section 44D into the Reserve Bank of Zimbabwe Act [Chapter 22:15] and declared in section 44D (6) that: "The tender of payment of ZiG notes and coins shall be legal tender in all transactions, alongside any other currency acceptable as legal tender as prescribed under section 44A."

[21] Section 44A of the Reserve Bank of Zimbabwe Act is the enabling provision for multi-currency legal tender recognition. It authorises the Minister, by regulations, to prescribe that "a tender of payment in any currency other than Zimbabwean currency shall be legal tender in all transactions" or specified transactions, subject to conditions set in those regulations.

[22] An additional statutory interpretive lens arises from section 5 of the Presidential Powers (Temporary Measures) Act, which provides that regulations made under section 2 "shall, to the extent of any inconsistency, prevail over any other law to the contrary" (save for emergency powers regulations).

[23] Turning to interpretive method, Zimbabwean courts consistently apply the starting point that where language is clear it is to be given its ordinary grammatical meaning; but where ambiguity exists, meaning is adopted that best fits purpose, context, and avoids irrationality. It is the duty of a court to interpret statutes. Where the language used in a statute is clear and unambiguous, the words ought to be given the ordinary grammatical meaning. However, where the language used is ambiguous and lacks clarity, the court will need to interpret it and

give it meaning. There is enough authority for this rule of interpretation. The general principle of interpretation is that the ordinary, plain, literal meaning of the word or expression, that is, as popularly understood, is to be adopted, unless that meaning is at variance with the intention of the Legislature as shown by the context or such other indicia as the court is justified in taking into account, or creates an anomaly or otherwise produces an irrational result. Interpretation is the process of attributing meaning to the words in a document, be it legislation, some other statutory instrument, or contract, having regard to the context provided by reading the particular provision or provisions in the light of the document as a whole and the circumstances attendant upon its coming into existence.

[24] Whatever the nature of the document, consideration must be given to the language used in the light of the ordinary rules of grammar and syntax; the context in which the provision appears; the apparent purpose to which it is directed; and the material known to those responsible for its production." 'According to the "golden rule" of interpretation, the language in the document is to be given its grammatical and ordinary meaning, unless this would result in some absurdity, or some repugnancy or inconsistency with the rest of the instrument.

[25] The Supreme Court in *Zambezi Gas Zimbabwe (Private) Limited v N.R. Barber (Private) Limited*, SC3/20 reaffirmed this approach, citing (among others*) Endeavour Foundation v Commissioner of Taxes* 1995 (1) ZLR 399 (S) and the contextual approach in *Natal Joint Municipal Pension Fund v Endumeni Municipality* [2012] ZASCA 13; 2012(4) SA, as well as the "golden rule" stated in *Coopers and Lybrand v Bryant*, 1995 (3) SA 761 (A).

[26] On "legal tender", the Supreme Court in *Breastplate Service (Private) Limited v Cambria Africa Plc*, SC 66/20 explained that legal tender "denotes money or currency in official circulation that must be accepted if offered in payment of a debt", with the consequence that a debtor is entitled to settle through legal tender and the creditor is obliged to accept it.

[27] Importantly, the same judgment recognises a qualification germane to this case: the debtor's ability to discharge a monetary obligation through legal tender can be "explicitly proscribed by statute."

[28] Where the validity of an extant statutory instrument is not directly impugned in properly framed proceedings, it is presumed to have the force of law and to be operative until set aside. This presumption of validity was restated by the Supreme Court in Walter Magaya v Zimbabwe Gender Commission (2021) ZWSC 105. It is pertinent to point out, that, for every law that is gazetted there is a presumption of validity.

[29] Finally, citizens and juristic persons are generally obliged to comply with the law as it stands and "argue afterwards", rather than to unilaterally treat a binding law as inoperative. The principle was memorably stated by the Supreme Court in *Associated Newspapers of Zimbabwe (Private) Limited v Minister of State for Information and Publicity*, SC111/04.

Analysis

[30] I start with what is common cause: the training levy is a statutory debt to the Fund, imposed pursuant to the parent Act, and enforceable by action at the suit of the Minister.

[31] On the agreed facts, the defendant is a prescribed employer and has a wage bill denominated in United States dollars. The agreed amount presently in dispute is USD 1,169,767.01.

[32] The first legal question is therefore whether the legal regime requires the defendant to pay that levy in the same currency as its wage bill.

[33] Statutory Instrument 187 of 2022 answers that question in express and peremptory language. It does not frame payment in foreign currency as an option, or as a preferred practice: it states that every employer with a foreign-currency wage bill "shall be required to pay… in foreign currency."

[34] That requirement is not ultra vires on its face in the context of the enabling provisions. Section 53(4)(a) expressly empowers the levy instrument to prescribe the "manner" of collection and payment. Currency of payment is quintessentially part of "manner" of payment in a multi-currency environment.

[35] It follows that, unless displaced by a later and inconsistent instrument, the training levy due from an employer with a wage bill in United States dollars is payable in United States dollars (or, at a minimum, payable in "foreign currency" as contemplated by the instrument).

[36] The defendant's principal reliance is on Statutory Instrument 60 of 2024 and on the concept of legal tender, contending that because ZiG is legal tender "in all transactions," it must be acceptable in discharge of the levy even where the wage bill is foreign-currency denominated.

[37] The defendant's argument is not without intuitive appeal, especially in an economy that has, at different points, operated multiple legal-tender frameworks. But legal disputes are resolved by careful reading of the operative texts and binding precedent, and not by intuition.

[38] Statutory Instrument 60 of 2024 provides that a tender of payment of ZiG is legal tender "alongside" any other currency acceptable as legal tender under section 44A.

[39] The word "alongside" is important. It signifies co-existence of legal tenders, not the elimination of currency-specific statutory obligations. On its face, section 44D (6) announces ZiG's status and compels acceptance of ZiG where ZiG is the proper tender for the obligation, just as other legal tenders must be accepted where they are the proper tender.

[40] A debtor's entitlement to settle by legal tender does not mean a debtor may unilaterally choose any one of multiple legal tenders to discharge an obligation whose governing statute has already fixed the currency of payment. This is precisely why the Supreme Court in Breastplate *(supra*), recognised that statutory schemes can "explicitly proscribe" discharge mechanisms that might otherwise be available under the general law of legal tender.

[41] The construction contended for by the defendant would require the court to treat Statutory Instrument 60 of 2024 as impliedly amending Statutory Instrument 187 of 2022. Such an implication cannot be lightly made where the later instrument is specific and the former is general.

[42] Put differently: legal tender doctrine answers the question "must a creditor accept this currency when it is the proper tender?" It does not, on its own, answer the antecedent question "what currency does this debt require?" In this matter, Statutory Instrument 187 of 2022 answers the antecedent question by fixing the currency of payment for employers with a foreign-currency wage bill.

[43] That reading is reinforced by the very structure of section 44D (6): ZiG is legal tender "alongside" other currencies that are legal tender under section 44A. Section 44A itself contemplates that legal-tender status may be "subject to such conditions" as prescribed in regulations.

[44] The training levy instrument (as amended) is therefore properly understood as one of the "conditions" operating within the architecture of a multi-currency system: it prescribes, for a defined public obligation, the currency in which payment must be made. Statutory Instrument 187 of 2022 does exactly that. For employers with foreign-currency wage bills, the levy is to be paid in foreign currency.

[45] A further and decisive reinforcement comes from the Supreme Court's recent reasoning in the tax context. In *Delta Corporation (Pvt) Ltd v ZIMRA* SC 62/25, the Supreme Court held—on a reading of the relevant revenue statutes—that it would be "absurd" to conclude that the legislature intended that income earned in foreign currency be taxed in local currency, and emphasised that the law did not permit conversion of tax across currency denominations.

[46] While that decision arose in the framework of revenue collection and statutory tax accounting, its underlying interpretive logic is transferable where Parliament (or the lawmaker acting under delegated authority) has clearly prescribed currency-specific payment obligations: absent a clear authorisation for conversion, courts should not imply one, particularly where doing so would undermine the evident fiscal purpose of the scheme.

[47] I cannot treat the defendant's argument as merely a complaint of inconvenience. But the role of the court is not to re-write clear statutory text or to substitute policy preferences for legislative choice.

[48] The defendant may contend that this Court is importing tax logic into a levy regime. But the Manpower levy is not a private contractual debt governed only by party autonomy; it is a statutory debt to a public fund, collectible by action at the suit of the Minister, and supported by a framework permitting interest and surcharge.

[49] The presence of Statutory Instrument 187 of 2022 makes the analogy even stronger: unlike settings where the governing legal text is silent, here the subordinate instrument has spoken directly to the currency of payment.

[50] In the absence of a principled basis to treat Statutory Instrument 60 of 2024 as impliedly overriding the specific foreign-currency payment rule for this levy, I must give effect to Statutory Instrument 187 of 2022.

[51] The defendant's obligation to pay in foreign currency therefore remains intact.

[52] The defendant's reliance on section 5 of the Presidential Powers Act requires separate consideration. If there is "inconsistency" between Statutory Instrument 60 of 2024 and Statutory Instrument 187 of 2022, section 5 would instruct that the former prevails to the extent of inconsistency.

[53] In my view, proper construction avoids an inconsistency. Statutory Instrument 60 of 2024 establishes ZiG's legal tender status and ensures it can function as money; it does not purport to amend the many sector-specific statutory schemes that prescribe currency of payment for particular public obligations (taxes, duties, royalties, levies) unless it does so expressly.

[54] Statutory Instrument 187 of 2022, on the other hand, is a sector-specific payment rule made under an Act that authorises the levy instrument to prescribe the manner of payment; it fixes the currency of the obligation. In these circumstances, Statutory Instrument 187 of 2022 continues to operate and must be applied according to its clear terms.

[55] Those two instruments therefore operate at different conceptual layers: one declares what is legal tender; the other declares what is owed and in what currency it must be paid. Read coherently, ZiG may be legal tender generally, but does not displace an express statutory requirement that a particular public obligation be paid in foreign currency.

[56] Even if the matter were approached on the footing that an inconsistency exists, it would still be necessary to identify a clear intention in Statutory Instrument 60 of 2024 to override currency-specific public payment obligations. The transparent wording of section 44D (6)—"alongside any other currency acceptable as legal tender"—points away from an intention to abolish currency-specific statutory payment rules.

[57] The defendant also sought comfort from the idea that currency "conversion" does not necessarily imply "lesser value," especially when the domestic currency is legal tender. In Zambezi Gas (*supra*), for example, the Supreme Court rejected an argument that conversion from a foreign currency denomination to a local currency denomination necessarily results in a "lesser value," stressing that legal tender carries a legally defined value.

[58] That proposition, sound within its own statutory setting, does not answer the present problem. The question before me is not whether ZiG has legal value, nor whether conversion could theoretically preserve value. The question is whether the law authorises the defendant to discharge this particular statutory debt by tendering ZiG instead of paying in foreign currency where the levy instrument requires foreign currency payment.

[59] *Zambezi Gas* itself shows the primacy of the governing instrument: it treated the interpretive task as one of construing the statutory instrument and related legislation in light of agreed facts and context.

[60] Here, the governing levy instrument does not provide for payment in ZiG as an alternative for employers with foreign wage bills; it commands payment in foreign currency.

[61] Nor is this a case in which the defendant has properly brought proceedings to set aside Statutory Instrument 187 of 2022 or to obtain a declarator of invalidity. The Court is not seized with such relief. Absent such a determination, the instrument remains operative and presumed valid.

[62] It follows that, on the agreed facts and the applicable law, the tender of local currency payment in July 2024 was not a valid discharge of the statutory levy obligation in the circumstances governed by Statutory Instrument 187 of 2022.

[63] I therefore answer the first stated issue in the affirmative: the defendant is liable to pay the sum of USD 1,169,767.01 (and any surcharge properly arising under the levy instrument) in foreign currency in accordance with Statutory Instrument 187 of 2022.

[64] I answer the second stated issue in the negative: the defendant is not entitled, as a matter of law, to insist on settling that liability in local currency in the face of the explicit statutory requirement of payment in foreign currency applicable to employers whose wage bill is in foreign currency.

[65] In arriving at that conclusion, I emphasise that this judgment should not be read as diminishing ZiG's legal tender status. ZiG's legal tender status is declared by law and must be respected in the domain in which it is the legally proper tender. ZiG must be accepted in discharge of obligations where ZiG is the legally proper tender for the obligation.

[66] This judgment simply gives effect to the equally binding proposition that, where the law explicitly prescribes the currency in which a particular public obligation is to be discharged, the debtor must comply with that prescription and may not impose an alternative by unilateral election.

Disposition

In the result, judgment is granted in favour of the plaintiff on the stated case.

It is ordered as follows:

(1) The defendant shall pay the plaintiff the sum of USD 1,169,767.01 in United States dollars (or such other qualifying foreign currency as satisfies the requirement of Statutory Instrument 187 of 2022), being the agreed arrear training levy liability presently in issue.

(2) Any statutory surcharge and/or interest lawfully arising under the levy instrument and the enabling Act shall be payable in the same currency as the principal liability, being foreign currency, in accordance with the applicable statutory scheme.

(3) The defendant's tender of payment in local currency in July 2024 did not constitute valid discharge of the obligation addressed in this stated case, and the plaintiff was entitled to reject it as non-compliant with Statutory Instrument 187 of 2022.

(4) The defendant shall pay costs of suit.

MAMBARA J……..

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Mavhiringidze and Mashanyare, plaintiff's legal practitioners
D. Matete Commercial Law Chambers, defendant's legal practitioners